

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Corwin	Team: Squad #10	CCRB Case #: 201901669	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 02/02/2019 12:22 PM	Location of Incident: 60th Precinct Stationhouse	18 Mo. SOL 3/19/2021	Precinct: 60		
Date/Time CV Reported Tue, 02/05/2019 9:49 AM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Tue, 02/05/2019 9:49 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Alena Aminova	12222	946745	060 PCT
2. POF Rachelle Nania	01860	939375	060 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Matthew Pfeifer	30134	965412	060 PCT
2. POM Derin Devuono	10924	930008	060 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Rachelle Nania	Abuse: Police Officer Rachelle Nania did not process § 87(2)(b)'s complaint regarding an officer.	A . Unsubstantiated
B . POF Alena Aminova	Discourtesy: Police Officer Alena Aminova spoke discourteously to § 87(2)(b)	B . Unsubstantiated
C . POF Alena Aminova	Abuse: Police Officer Alena Aminova did not process § 87(2)(b)'s complaint regarding an officer.	C . Unsubstantiated

Case Summary

On February 05, 2019, § 87(2)(b) and § 87(2)(b) made the following complaint in person at the CCRB.

At approximately 12:22 p.m. on February 02, 2019, § 87(2)(b) and § 87(2)(b) walked into the 60th Precinct stationhouse in Brooklyn in order to file a complaint against Police Officer Alena Aminova, of the 60th Precinct, regarding a series of interactions they had with her prior to the incident date (CCRB Case § 87(2)(b) CCRB Case § 87(2)(b)). They initially spoke with Police Officer Rachelle Nania of the 60th Precinct, at the front desk of the stationhouse and told her they wanted to file a complaint against PO Aminova (**Allegation A: Abuse of Authority: Refusal to Process Civilian Complaint: Unsubstantiated**). PO Aminova, Police Officer Matthew Pfeifer and Police Officer Derin Devuono, both 60th Precinct officers, eventually joined them in the lobby of the stationhouse.

§ 87(2)(b) and PO Aminova discussed their previous encounters, and when § 87(2)(b) told PO Aminova that she was acting illegally, PO Aminova allegedly said, “You’re full of shit. I don’t give a fuck about you. You’re a scumbag,” (**Allegation B: Discourtesy: Word: Unsubstantiated**). § 87(2)(b) then allegedly told PO Aminova that he wanted to file a complaint against her and she allegedly pointed to a telephone number on a sign on the wall and said, “There’s the telephone number.” Then she said, “You know what? You’re not making a complaint. Get the hell out of my precinct,” (Also **Allegation B** and **Allegation C: Abuse of Authority: Refusal to Process Civilian Complaint: Unsubstantiated**).

§ 87(2)(b) and § 87(2)(b) then left the stationhouse. They were not arrested or summonsed and they never filed a complaint against PO Aminova at the stationhouse .

The investigation obtained stationhouse video footage covering the incident (**Board Review 01**) and prepared a written summary of the video (**Board Review 02**).

Findings and Recommendations

Allegation A: Abuse of Authority: Police Officer Rachelle Nania did not process § 87(2)(b) s complaint regarding an officer.

Allegation C: Abuse of Authority: Police Officer Alena Aminova did not process § 87(2)(b) s complaint regarding an officer.

§ 87(2)(b) stated that when he and § 87(2)(b) entered the stationhouse they initially spoke with PO Nania and explained that they wanted to make a complaint against PO Aminova. They gave PO Nania some paperwork § 87(2)(b) was unable to specify what paperwork they gave her). PO Nania spoke with another officer, and then PO Aminova came into the room. PO Aminova asked them what they wanted and why they were there and § 87(2)(b) told her that they were there to file a complaint against her. PO Aminova told § 87(2)(b) she was just doing her job and protecting the elderly. PO Aminova proceeded to tell § 87(2)(b) to leave the stationhouse, which he and § 87(2)(b) did.

§ 87(2)(b) stated that when she and § 87(2)(b) spoke with PO Nania, who was at the front desk, they tried to pronounce PO Aminova’s name but were unable to. PO Nania explained how to pronounce the name and told them that PO Aminova worked at that precinct. § 87(2)(b) stated that he wanted to speak to her supervisor about PO Aminova, but PO Nania told him that the supervisor was not working at that time. An officer seemed to overhear the conversation and

walked to another part of the stationhouse and came back with PO Aminova. PO Aminova asked them what they wanted, and § 87(2)(b) told her that they were there to file a complaint against her. PO Aminova pointed to a telephone number on a sign on the wall and said, “There’s the telephone number.” Then she said, “You know what? You’re not making a complaint. Get out of my station right now. Get out.” § 87(2)(b) and § 87(2)(b) then left.

PO Nania did not have an independent recollection of the incident. She was shown the stationhouse video of the incident, but that did not refresh her memory. She did not recall hearing § 87(2)(b) or § 87(2)(b) ever say that they wanted to file a complaint against PO Aminova to her or to any other officers. She did not recall hearing PO Aminova tell § 87(2)(b) or § 87(2)(b) that they could not file a complaint against her.

PO Aminova stated that § 87(2)(b) and § 87(2)(b) were in the stationhouse in order to file a criminal complaint against § 87(2)(b)’s mother. PO Aminova said that neither § 87(2)(b) nor § 87(2)(b) told her that they wanted to file a complaint against her and she did not recall if they mentioned that to any other officers. PO Aminova told the investigation that if § 87(2)(b) had wanted to file a complaint against her, it would not have been a problem because they had the CCRB’s information and phone number clearly presented inside the stationhouse. PO Aminova said civilians could file a complaint at the stationhouse with a supervisor as well, but she did not remember § 87(2)(b) asking to file a complaint against her. PO Aminova would have offered to have a supervisor file a complaint if he wanted to. After being shown the stationhouse video, PO Aminova identified the CCRB poster as a red poster above the black waiting room chairs. PO Aminova acknowledged that she pointed at the CCRB poster, however she still did not remember § 87(2)(b) saying he wanted to file a complaint against her. PO Aminova denied telling § 87(2)(b) “You’re not making a complaint. Get the hell out of the station.” She said that the reason § 87(2)(b) and § 87(2)(b) left the stationhouse was not because she told them to, but because they did not get what they wanted regarding filing a criminal complaint against § 87(2)(b)’s mother.

PO Pfeifer did not remember why § 87(2)(b) and § 87(2)(b) were in the stationhouse, but he recalled that § 87(2)(b) and PO Aminova appeared to be arguing. He did not recall what the argument was about. He did not hear § 87(2)(b) ask to file a complaint against PO Aminova or hear her tell § 87(2)(b) and § 87(2)(b) that they could not make a complaint against her. PO Pfeifer did not recall seeing PO Aminova point to the CCRB poster and tell § 87(2)(b) and § 87(2)(b) that if they wanted to file a complaint against her they could call the number on the poster.

PO Devuono did not recall why § 87(2)(b) and § 87(2)(b) were in the stationhouse. He did not recall them asking to file a complaint against PO Aminova and did not recall any officers refusing to file this complaint. He denied seeing PO Aminova point to a sign and tell the civilians that that was how they could make a complaint.

The video shows PO Aminova and § 87(2)(b) speaking. At 11:31 of the video (**Board Review 01**), PO Aminova points at a red sign on the wall, determined by the investigation to be a poster with the CCRB’s information on it.

While the video shows PO Aminova pointing at the CCRB poster in the stationhouse, which is consistent with § 87(2)(b)’s statement, because the video does not have audio, the investigation was unable to determine the context in which PO Aminova pointed at the sign.

§ 87(2)(g)

It is therefore recommended that **Allegation A** and **Allegation C** be *unsubstantiated*.

Allegation B: Discourtesy: Police Officer Alena Aminova spoke discourteously to § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) provided statements at the CCRB on February 05, 2019 (**Board Review 03** and **Board Review 04**). PO Aminova provided a statement at the CCRB on October 22 (**Board Review 05**). PO Nania provided a statement at the CCRB on September 12, 2019 (**Board Review 06**). PO Pfeifer and PO Devuono provided statements at the CCRB on October 09, 2019 (**Board Review 07** and **Board Review 08**)

§ 87(2)(b) stated that when PO Aminova first approached him in the stationhouse lobby, she asked him what he wanted, and he told her he wanted to file a complaint against her. She told him she was just doing her job. § 87(2)(b) then told PO Aminova that she was wrong to try to have him evicted and she replied, “You’re full of shit. I don’t give a fuck about you. You’re a scumbag.” Later, after § 87(2)(b) again told PO Aminova he wanted to file a complaint against her, she told him, “get the hell out of my precinct.”

§ 87(2)(b)'s statement was generally consistent with § 87(2)(b)'s in regard to the course of events, however, she did not make any allegations of discourtesy during her statement. § 87(2)(b) noted however that she was hearing impaired at the time of the incident.

PO Aminova stated that § 87(2)(b) and § 87(2)(b) were at the stationhouse because they wanted to file a criminal complaint against § 87(2)(b)'s mother. § 87(2)(b) cursed at her during the course of the conversation. She did not use any profanity in her conversation with § 87(2)(b) and she denied saying, “You’re full of shit, I don’t give a fuck about you, you’re a scumbag.” She also denied saying, “Get the hell out of my precinct,” to § 87(2)(b) and stated that he and § 87(2)(b) left the stationhouse because they did not get what they wanted, not because they were ordered to leave.

PO Pfeifer, and PO Devuono were generally consistent in their statements. They both denied hearing PO Aminova use any profanity. They did not hear her say, “You’re full of shit, I don’t give a fuck about you, you’re a scumbag,” or “Get the hell out of my precinct.” PO Nania did not recall hearing PO Aminova use any profanity either.

The video footage does not contain audio, so it did not influence the recommended disposition.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be *unsubstantiated*.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three other CCRB complaints and has been named as a victim in seven allegations (**Board Review 09**):

Reviewer:

Signature

Print Title & Name

Date